

Disclaimer:

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Marketing Services Contract

This Marketing Services Agreement (“Agreement”) is entered into on 11-03-2025 (the “Effective Date”) by and between

Naman Singh, (the “Client”) located at Raj House, Flat No.12, Near DAV LKKB School, Shimla, H.P. (171001) and

Aman Verma (the “Provider”) Business name SMMA located at Verma Niwas, Below Old Indian Bank, Mashobra, Shimla, H.P. (171007), individually referred to as “Party”, and collectively the “Parties”.

RECITAL**WHEREAS:**

- A. The Client desires to engage the Provider for professional marketing services to promote its business, brand, and products;
- B. The Provider possesses the expertise, personnel, and resources necessary to provide such marketing services; and
- C. The Parties wish to set forth the terms and conditions under which the Provider will render such services.

NOW, THEREFORE, in consideration of the mutual covenants and obligations set forth herein, the Parties agree as follows:

1. SERVICES

1.1 Scope of Services

The Client hereby engages the Provider to perform the following marketing services (the "Services"):

1.1.1 Core Marketing Services: (a) Radio Promotion – Conducting advertisement campaigns on leading FM and AM radio stations, including scriptwriting, voice-over recording, production, and placement in peak listening hours.

(b) Website Promotion – Implementing Search Engine Optimization (SEO) strategies, Pay-Per-Click (PPC) advertising, website traffic analysis, A/B testing, and optimizing landing pages for higher conversion rates.

(c) Television Promotion – Developing and producing high-quality TV commercials, securing broadcast placements, coordinating sponsorship opportunities, and targeting prime-time advertising slots on national and regional networks.

(d) Social Media Promotions – Managing content creation, designing paid social media campaigns, engaging with communities, leveraging influencer marketing strategies, and analyzing social media performance metrics to refine engagement strategies.

(e) Newsprint Promotion – Designing and placing full-page, half-page, and classified advertisements in leading newspapers and magazines, ensuring multilingual content creation to reach a diverse audience base.

1.1.2 Digital and Additional Marketing Services: (f) Additional Digital Platforms – Executing marketing campaigns across the following online platforms to maximize reach and audience engagement:

- Instagram
- Facebook
- Twitter (X)
- Pinterest
- Google Maps
- LinkedIn

- YouTube
- TikTok
- Snapchat
- Email marketing campaigns with automated and targeted audience segmentation.

(g) Other Customized Marketing Services – Providing any additional marketing services required by the Client, including but not limited to press releases, influencer collaborations, strategic sponsorships, and event marketing, subject to mutual agreement and written confirmation by both parties.

2. FEES AND PAYMENT TERMS

2.1 Total Consideration

The Client agrees to compensate the Provider for the performance of the Services as set forth in this Agreement. The total contractual value for the Services to be rendered over the agreed contract term of ten (10) years is INR 1,00,00,000/- (One Crore Rupees Only), with an annual budget allocation of INR 10,00,000/- (Ten Lakh Rupees Only) for the execution of marketing services as detailed in Exhibit A.

2.2 Payment Schedule

(a) The Client shall make an initial payment of INR 1,00,000/- (One Lakh Rupees Only) upon the execution of this Agreement as a non-refundable commitment fee.

(b) The remaining amount of INR 9,00,000/- (Nine Lakh Rupees Only) per annum shall be payable in equal monthly instalments of INR 75,000/- (Seventy-Five Thousand Rupees Only). Each instalment shall be due on or before the 1st day of every month for the duration of the contract term.

(c) The Client shall ensure that all payments are made in accordance with the due dates specified herein. Any delay or default in payment shall be subject to penalties as provided under Clause 2.5 (Late Payment & Interest).

2.3 Payment Method

All payments under this Agreement shall be made through the following modes:

- (a) **Electronic Bank Transfer (NEFT/RTGS/IMPS)** – Payments shall be transferred directly to the Provider's designated bank account.
- (b) **Demand Draft (DD)** – The Client may issue a demand draft in favor of the Provider, payable at a bank designated by the Provider.
- (c) **UPI (Unified Payments Interface) Transactions** – The Client may make payments using UPI-enabled applications, including but not limited to Google Pay, PhonePe, Paytm, and BHIM UPI.
- (d) **Online Payment Gateway** – The Client may use the Provider's authorized online payment portal for secure transactions.
- (e) **Wire Transfer** – For international transactions, the Client may remit payments via wire transfer to the Provider's designated bank account, with all associated charges borne by the Client.
- (f) **Any Other Agreed Digital Payment Method** – Any alternative digital payment method may be used upon mutual written agreement between the Parties.

2.4 Taxes and Deductions

All applicable taxes, including **Goods and Services Tax (GST)**, withholding tax, or any other levies imposed by the government, shall be borne by the Client in addition to the agreed fees. If any deductions are required as per statutory provisions, the Client shall provide the Provider with a valid tax deduction certificate.

2.5 Late Payment & Interest

Failure to make timely payments shall attract a **late fee of 2% per month** on the outstanding balance. If the payment remains overdue for more than **60 days**, the Provider reserves the right to suspend the Services until the outstanding amount is cleared.

2.6 Review & Adjustment Clause

The Parties acknowledge that the nature and scope of marketing services may evolve over the **ten-year term** of the Agreement. Accordingly, the fee structure shall be subject to **annual review and adjustments** based on market conditions, inflation, and the Client's evolving marketing requirements. Any such revisions shall be agreed upon in writing by both Parties.

2.7 Additional Costs & Third-Party Expenses

- (a) The fees outlined in this Agreement cover only the cost of services directly performed by the Provider. Any **third-party costs**, including but not limited to paid advertising, influencer sponsorships, premium media placements, or additional software tools, shall be **billed separately** upon prior written approval of the Client.
- (b) Such additional costs shall be **invoiced on an actuals basis** and shall be payable within **30 days** of receipt of the invoice.

2.8 Payment Confirmation

Upon receipt of each payment, the Provider shall issue an official invoice or receipt to the Client for record-keeping and tax purposes.

4. Term and Termination of Agreement

4.1 Term of the Agreement

This Agreement shall be valid for a period of **ten (10) years**, commencing from the **Effective Date** and shall remain in force unless terminated earlier in accordance with the provisions set forth in this Agreement.

4.2 Termination by Mutual Agreement

This Agreement may be terminated at any time by mutual written consent of both Parties, specifying the terms and conditions of such termination, including any outstanding payments or obligations.

4.3 Termination by Either Party

Either Party may terminate this Agreement by providing **ninety (90) days prior written notice** to the other Party. In such cases:

- (a) The Client shall be responsible for full payment of all Services rendered up to the termination date.
- (b) Any outstanding payments due to the Provider shall be settled within **thirty (30) days** of termination.
- (c) The Provider shall deliver any completed work to the Client, provided all due payments have been made.

4.4 Termination for Cause

Either Party may terminate this Agreement with immediate effect by providing written notice if the other Party commits a material breach of its obligations under this Agreement and fails to cure such breach within **thirty (30) days** of receiving written notice of the breach.

4.4.1 Termination by Client for Provider's Breach

The Client may terminate this Agreement if the Provider:

- (a) **Fails to perform the Services** in a timely and professional manner as per the agreed terms.
- (b) **Engages in fraudulent or unethical conduct** that harms the Client's reputation or business interests.
- (c) **Fails to comply with confidentiality obligations** or misuses the Client's proprietary or sensitive information.
- (d) **Does not rectify any breach** within the cure period specified in the breach notice.

In such a case, the Client shall not be liable for any further payments beyond the completed Services and shall be entitled to a refund for any prepaid but unrendered Services.

4.4.2 Termination by Provider for Client's Breach

The Provider may terminate this Agreement if the Client:

- (a) **Fails to make timely payments** for the Services as per the agreed schedule.
- (b) **Provides false or misleading information** that impacts the Provider's ability to perform the Services.
- (c) **Fails to cooperate** in a manner that significantly affects the execution of the Services.
- (d) **Engages in illegal or unethical practices** that may expose the Provider to liability or reputational damage.

In such a case, the Provider shall be entitled to full compensation for all Services rendered up to the date of termination and may seek additional damages, if applicable.

4.5 Effect of Termination

Upon termination of this Agreement for any reason:

- (a) The Provider shall cease all Services and deliver any completed work to the Client upon receipt of any outstanding payments.
- (b) The Client shall immediately settle all pending payments due for completed Services.

(c) Any provisions relating to confidentiality, indemnification, dispute resolution, and any other clauses that by their nature should survive termination shall remain in full force and effect.

4.6 Suspension of Services

If the Client fails to make payments within **sixty (60) days** from the due date, the Provider reserves the right to suspend all Services until outstanding dues are cleared. Such suspension shall not be considered a termination but may lead to termination if the delay continues beyond **ninety (90) days**.

4.7 Force Majeure Termination

Either Party may terminate this Agreement if the performance of obligations is rendered impossible due to an event of **Force Majeure** (e.g., natural disasters, war, government restrictions, or any event beyond the reasonable control of either Party) and such event continues for more than **ninety (90) days**. In such cases:

- (a) The Provider shall be compensated for all completed Services.
- (b) Both Parties shall be released from further obligations without penalty.

4.8 Return of Materials

Upon termination, both Parties shall return or destroy all confidential information, proprietary materials, and any assets provided by the other Party, except for materials legally required to be retained for compliance purposes.

4.9 Dispute Resolution for Termination

If a dispute arises regarding the termination of this Agreement, both Parties agree to engage in **good-faith negotiations** for a period of **thirty (30) days** before pursuing legal action. Any unresolved disputes shall be subject to the dispute resolution clause specified in this Agreement.

5. Confidentiality and Intellectual Property

5.1 Confidentiality Obligations

In the course of providing services under this Agreement, the Client may disclose to the Provider certain proprietary, confidential, or trade-sensitive information, including but not

limited to business strategies, trade secrets, technical data, financial information, intellectual property, and other non-public information (“Confidential Information”). The Provider agrees to:

- (a) Maintain the confidentiality of all Confidential Information and not disclose it to any third party without the prior written consent of the Client;
- (b) Use the Confidential Information solely for the purpose of performing the services under this Agreement and not for any other purpose, whether personal or commercial;
- (c) Implement appropriate measures to protect the confidentiality of such information and prevent unauthorized access, disclosure, or misuse.

5.2 Intellectual Property Rights

All intellectual property, including but not limited to trademarks, copyrights, patents, trade secrets, and proprietary information, disclosed or provided to the Provider under this Agreement shall remain the exclusive property of the Client. Nothing in this Agreement shall be construed as granting the Provider any rights, title, or interest in such intellectual property.

5.3 Survival of Obligations

The obligations under this Section shall survive the termination or expiration of this Agreement and shall remain binding indefinitely, unless otherwise agreed in writing by the Parties.

5.4 Remedies for Breach

Any breach of this clause shall entitle the Client to seek injunctive relief, damages, and any other remedies available under law or equity, including but not limited to legal costs and attorneys’ fees incurred in enforcing these provisions.

6. Relationship Between Client and Provider

6.1 No Exclusivity

Both Parties acknowledge that this Agreement is non-exclusive. The Provider shall have the right to enter into similar agreements with other clients, and the Client shall have the right to engage other service providers for the same or similar services, without restriction.

6.2 Independent Contractor

The Provider is engaged as an independent contractor and not as an employee, agent, partner,

joint venturer, or fiduciary of the Client. Nothing in this Agreement shall be construed to create any employer-employee relationship, agency, or partnership between the Parties. The Provider shall have full control over the manner and means of performing the services and shall not be subject to the Client's supervision or direction, except as necessary to ensure compliance with the terms of this Agreement.

6.3 Tax and Legal Responsibilities

As an independent contractor, the Provider shall be solely responsible for the payment of all applicable taxes, including income tax, self-employment tax, and any other statutory obligations related to compensation received under this Agreement. The Client shall not be responsible for withholding any taxes or providing employment benefits, including but not limited to health insurance, retirement contributions, or paid leave.

7. Ownership Rights

7.1 Client's Proprietary Information

All proprietary, confidential, or trade-sensitive information shared by the Client with the Provider during the term of this Agreement shall remain the exclusive property of the Client. The Provider shall have no rights to use such information except as necessary for the performance of the agreed-upon Services.

7.2 Ownership of Final Deliverables

Upon successful completion of the Services and full payment to the Provider, the Client shall have sole ownership rights over all final marketing materials, content, or deliverables developed by the Provider under this Agreement. The Provider shall not retain any ownership or licensing rights to the final deliverables unless otherwise agreed in writing by both Parties.

7.3 Pre-Existing and Template Designs

The Client acknowledges that the Provider may utilize commonly used structures, frameworks, or template designs that have been developed independently prior to this Agreement. Any such pre-existing materials shall remain the exclusive property of the Provider.

7.4 Ownership of Newly Created Templates

Any template designs, frameworks, or reusable components created by the Provider specifically for the Client during the performance of the Services shall become the sole

property of the Provider upon fulfillment of this Agreement, unless otherwise agreed in writing. The Client shall have no rights to modify, reuse, or distribute such templates beyond the scope of the final deliverables.

8. Limitation of Liability

8.1 Exclusion of Certain Damages

Neither Party shall be liable to the other Party or any third party for any indirect, incidental, consequential, special, or punitive damages arising from or related to this Agreement. This includes, but is not limited to, loss of revenue, anticipated profits, lost business opportunities, costs of delays, or failure of delivery, except where such damages are a direct result of that Party's negligence or material breach of this Agreement.

8.2 Liability Cap

To the maximum extent permitted by law, the total liability of either Party under this Agreement, whether in contract, tort, or otherwise, shall be limited to the total fees paid or payable by the Client to the Provider for the Services provided under this Agreement.

8.3 Exceptions

The limitations set forth in this Section shall not apply to damages arising from:

- (a) A Party's willful misconduct or gross negligence;
- (b) A breach of confidentiality or intellectual property obligations under this Agreement; or
- (c) Any liability that cannot be excluded under applicable law.

9. Waiver of Provisions

9.1 No Implied Waiver

No provision of this Agreement may be waived, modified, or altered except through a written instrument expressly acknowledging such waiver, signed by both Parties.

9.2 Limited Effect of Waiver

The waiver of any right, obligation, or provision under this Agreement shall apply only to the specific instance and scope expressly stated in the written waiver and shall not be construed as a continuing waiver or a waiver of any other rights or provisions under this Agreement.

9.3 Preservation of Rights

Failure or delay by either Party to enforce any provision of this Agreement shall not be deemed a waiver of that provision or of the right to enforce it at a later time.

10. Assignment

Neither Party may assign, transfer, delegate, or otherwise convey any of its rights or obligations under this Agreement to any third party without the prior written consent of the other Party. Any attempted assignment or transfer in violation of this clause shall be null and void and shall have no legal effect.

11. Dispute Resolution

11.1 Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India. Any legal action, suit, or proceeding arising from or related to this Agreement shall be subject to the exclusive jurisdiction of the courts located in **Shimla, India**.

11.2 Good Faith Negotiation

In the event of any dispute, controversy, or claim arising out of or in connection with this Agreement, the Parties shall first attempt to resolve the matter amicably through good faith negotiations.

11.3 Mediation and Arbitration

If the Parties fail to resolve the dispute through negotiation within a reasonable time, either Party may initiate mediation in **Shimla, India**, before a mutually agreed-upon mediator. If mediation is unsuccessful, the dispute shall be resolved through binding arbitration in accordance with the **Arbitration and Conciliation Act, 1996**, with the arbitration proceedings conducted in **Shimla, India**. The decision of the arbitrator(s) shall be final and binding on both Parties.

11.4 Legal Fees and Costs

The prevailing Party in any dispute resolution proceeding, whether mediation or arbitration, shall be entitled to recover reasonable attorney's fees, arbitration costs, and other legal

expenses incurred in connection with the dispute, unless otherwise determined by the arbitrator or mediator.

12. Entire Agreement

12.1 Comprehensive Agreement

This Agreement constitutes the complete and exclusive understanding between the Parties with respect to the subject matter herein and supersedes all prior and contemporaneous agreements, representations, warranties, negotiations, or understandings, whether written or oral, relating to such subject matter.

12.2 Amendments and Modifications

No modification, amendment, or alteration of this Agreement shall be valid or binding unless made in writing and signed by both Parties. Any oral modifications or email exchanges that are not formalized in a signed written document shall have no legal effect.

12.3 No Reliance on External Representations

Each Party acknowledges that they have entered into this Agreement based on their own evaluation and have not relied on any representations, promises, or statements made by the other Party or any third party that are not expressly set forth in this Agreement.

12.4 Survival of Terms

Notwithstanding the completion, expiration, or termination of this Agreement, any provisions that by their nature are intended to survive, including but not limited to confidentiality, dispute resolution, and intellectual property rights, shall remain in full force and effect.

13. Severability of Provisions

13.1 Severability and Validity

If any provision of this Agreement is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be deemed modified to the extent necessary to

make it enforceable. If modification is not possible, the offending provision shall be deemed severed from this Agreement.

13.2 Effect on Remaining Provisions

The invalidity or unenforceability of any provision shall not affect the validity or enforceability of the remaining provisions, which shall continue in full force and effect. The Parties agree to negotiate in good faith to replace any invalid or unenforceable provision with a valid provision that achieves the intended economic and legal effect as closely as possible.

13.3 Limited Scope of Severance

Severance of any provision shall not affect the fundamental purpose or overall enforceability of this Agreement. The remainder of the Agreement shall be construed to give effect to the intent of the Parties as originally contemplated.

14. Notices

14.1 Method of Notice

All notices, requests, demands, or other communications required or permitted to be given under this Agreement shall be in writing and shall be deemed duly delivered if sent via:

- (a) **Email** (with return receipt requested); or
- (b) **Certified or Registered Mail** (with return receipt requested) to the respective Party at the addresses provided below.

14.2 Notice Addresses

Notices shall be addressed as follows:

Client:

Name: Naman Singh

Address: Raj House, Flat No.12, Near DAV LKKB School, Shimla, Himachal Pradesh (171001)

Email: namansingh@gmail.com

Provider:

Name: Aman Verma

Business Name: SMMA

Address: Verma Niwas, Below Old Indian Bank, Mashobra, Shimla, Himachal Pradesh

(171007)

Email: amanverma@gmail.com

14.3 Effectiveness of Notices

(a) Notices sent via **email** shall be deemed received on the date the recipient confirms receipt or the sender receives an automated return receipt.

(b) Notices sent via **certified or registered mail** shall be deemed received three (3) business days after posting, provided that a return receipt is obtained.

14.4 Change of Address

Either Party may change its contact details for notices by providing written notification to the other Party in accordance with this Clause.

The Parties agree to the terms and conditions set forth above as demonstrated by their signatures below:

For the Client:

Signed: _____

Name: Naman Singh

Date: _____

For the Provider:

Signed: _____

Name: Aman Verma

Date: _____